

NEW OR TRANSFER LIQUOR LICENSE OR PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY		
Customer #:		
Trf from:		
Reviewer:	Initials	Date
Agent:		/ /
Chief:		/ /

To be completed by City/County Clerk

License Fees
Annual Fee: \$ 1500.00
Prorated Fee: \$ _____
Transfer Fee: \$ _____
Publishing Fee: \$ 100.00

Local License #: R 398790
Date filed with clerk: 1 31 122
Advertising Dates: (2 Weeks) 3/31/22 & 4/7/22
Hearing Date: 4/11/22

Publishing Fee Direct Billed to Applicant: ☐

License Term: 1 / 1 / Year Through 3 / 31 / 23
Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant: WYOMING DOWNS OTB 14 LLC
Trade/Business Name (dba): WYOMING DOWNS OTB 14
Building to be licensed/Building Address: 1345 DELL RANGE BLVD.
Number & Street
CHEYENNE, WY 82009
City State Zip County
Local Mailing Address: 2905 LAKE EAST DR., SUITE 150
Number & Street or P.O. Box
LAS VEGAS, NV 89117
City State Zip
Local Business Telephone Number: (307) 514-0903 Fax Number: (702) 227-0075
Business E-Mail Address: gtyler@wydowns.com

FILING FOR

☒ NEW LICENSE
☐ TRANSFER OF LOCATION

FILING IN (CHOOSE ONLY ONE)

☒ CITY OF: CHEYENNE
☐ COUNTY OF: _____

FILING AS (CHOOSE ONLY ONE)

☐ INDIVIDUAL
☐ PARTNERSHIP
☐ LP/LLP
☒ LLC
☐ CORPORATION
☐ LTD PARTNERSHIP
☐ ORGANIZATION
☐ OTHER _____

☐ TRANSFER OWNERSHIP ☐ ASSIGNMENT LETTER ATTACHED
FORMERLY HELD BY: _____

TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

RETAIL LIQUOR LICENSE

☐ ON-PREMISE ONLY (BAR)
☐ OFF-PREMISE ONLY (PACKAGE STORE)
☒ COMBINATION ON/OFF PREMISE (BOTH BAR & PACKAGE STORE)

☐ RESTAURANT LIQUOR LICENSE
☐ RESORT LIQUOR LICENSE
☐ BAR AND GRILL

LIMITED RETAIL (CLUB)

☐ VETERANS CLUB
☐ FRATERNAL CLUB
☐ GOLF CLUB
☐ SOCIAL CLUB

☐ MICROBREWERY
☐ WINERY
☐ DISTILLERY SATELLITE
☐ WINERY SATELLITE
☐ COUNTY RETAIL/SPECIAL MALT BEVERAGE PERMIT

SPECIAL DESIGNATIONS

☐ CONVENTION FACILITY ☐ GOLF CLUB ☐ RESORT
☐ CIVIC CENTER/EVENT CENTER/ PUBLIC AUDITORIUM ☐ GUEST RANCH

To Assist the Liquor Division with scheduling inspections: **OPERATIONAL STATUS**

☒ FULL TIME (e.g. Jan through Dec) (specify months of operation) from JANUARY to DECEMBER
☐ SEASONAL/PART-TIME DAYS OF WEEK (e.g. Mon through Sat) from SUNDAY to SATURDAY
☐ NON-OPERATIONAL/PARKED HOURS OF OPERATION (e.g. 10a - 2a) Sun -Thurs 10am-12am & Fri - Sat 10am-2am

ALL APPLICANTS MUST COMPLETE QUESTIONS 1- 4

1. BUILDING OWNERSHIP: Does the applicant? W.S. 12-4-103(a)(iii)

- (a) OWN the licensed building? ☐ YES (own)
- (b) LEASE the licensed building? (Lease must be through the term of the liquor license) ☒ YES (lease)

If Yes, please submit a copy of the lease and indicate:

- (i) When the lease expires, located on page_1_____paragraph__2_____of lease.
- (ii) Where the Sales provision for alcoholic or malt beverages is located, on page_1_____paragraph_3__of First Amendment to Triple Net Lease Agreement.
(MUST contain a provision for SALE OF ALCOHOLIC or MALT BEVERAGES.)

2. To operate your liquor business, have you assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license and the licensed building? W.S. 12-4-601(b) ☐ YES ☒ NO

3. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection there within:

4. Does the applicant have any interest or intent to acquire an interest in any other liquor license issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO

If "YES", explain: _____

5. BAR AND GRILL LICENSE OR RESTAURANT LICENSE:

Have you submitted a valid food service permit or application? W.S. 12-4-413(a) ☐ YES ☐ NO

6. RESORT LICENSE:

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
- (d) If no on question (c), have a ski resort facility open to the general public in which you have committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
- (e) Are you contracting/leasing the food and beverage services? W.S. 12-4-403(b)
1. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

7. MICROBREWERY LICENSE:

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
- ☐ BAR AND GRILL ☐ WINERY
- (b) Do you self distribute your products? W.S. 12-2-201(a) ☐ YES ☐ NO
- (Requires wholesale malt beverage license with the Liquor Division)

8. WINERY LICENSE:

- Will the license be held in conjunction with another liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO
- (a) If "YES", please specify type: ☐ RETAIL ☐ RESTAURANT ☐ RESORT
- ☐ BAR AND GRILL ☐ MICROBREWERY

9. LIMITED RETAIL (CLUB) LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D)/W.S. 12-4-301(e):

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO
- (c) Are you a political subdivision of the state that owns, maintains, or operates a golf course? ☐ YES ☐ NO
1. Are you contracting/leasing the food and beverage services? W.S. 12-5-201(g) ☐ YES ☐ NO
2. If Yes, have you submitted a copy of the food and beverage contract/lease? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E)/W.S. 12-4-301(b):

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as Recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition Attached) ☐ YES ☐ NO

13. If applicant is filing as an Individual, Partnership or Club: W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or club officer must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

14. If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director must complete the box below.

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	No. of Years in Corp or LLC	% of Corpora te Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
ERIC NELSON	1/22/1959	3611 S. LINDELL RD, #201 LAS VEGAS, NV 89103	(702) 682- 8918	10	100%	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application)

REQUIRED ATTACHMENTS:

- ☒ A statement indicating the financial condition and financial stability of the applicant W.S. 12-4-102(a)(vi).
- ☒ Attach any lease agreements (especially for resort/political subdivisions leasing out food & beverage services) W.S. 12-4-103 (a)(iii)/W.S. 12-4-403(b)/W.S. 12-4-301(e).
- ☐ If transferring a license from one ownership to another, a form of assignment from the current licensee to the new applicant authorizing the transfer W.S. 12-4-601(b).

OATH OR VERIFICATION

(Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

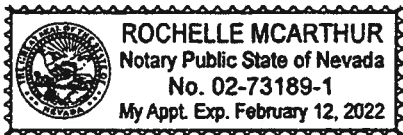
Under penalty of perjury, and the possible revocation or cancellation of the license,
I swear the above stated facts, are true and accurate.

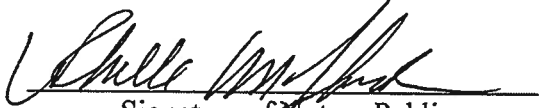
STATE OF NEVADA)
) SS.
COUNTY OF CLARK)

Signed and sworn to before me on this 27th day of January, 2022 that the facts alleged in the foregoing instrument are true by the following:

- | | | | |
|----|--|-------------------------------|------------------|
| 1) | 
(Signature) | ERIC NELSON
(Printed Name) | MANAGER
Title |
| 2) |
(Signature) |
(Printed Name) |
Title |
| 3) |
(Signature) |
(Printed Name) |
Title |
| 4) |
(Signature) |
(Printed Name) |
Title |
| 5) |
(Signature) |
(Printed Name) |
Title |
| 6) |
(Signature) |
(Printed Name) |
Title |

Witness my hand and official seal:




Signature of Notary Public

(SEAL) My commission expires: 1.27.2022

**FIRST AMENDMENT TO
TRIPLE NET LEASE AGREEMENT**

THIS FIRST AMENDMENT TO TRIPLE NET LEASE AGREEMENT dated September 30, 2020 (hereinafter referred to as "the Agreement") by and between Teton Lane, LLC, (hereinafter referred to as "Owner"), and Wyoming Downs OTB 14, LLC, (hereinafter referred to as "Operator").

WHEREAS, for and in consideration of the provisions, representations and mutual covenants and conditions contained herein and in the referenced Agreement, the parties desire to AMEND and MODIFY the above referenced Agreement, to-wit:

1. Page 1, Section 1 is amended to INCLUDE the language as follows:
The Owner and Operator agree that the Premises shall be used and occupied for commercial purposes, specifically a bar and restaurant, **allowing for the sale of alcoholic and/or malt beverages on the leased premises.**
2. In all other respects the terms and conditions of the Agreement shall remain in full force and effect. The Owner and Operator hereby reaffirm all terms and conditions of the Agreement, except as modified by this First Amendment.

IN WITNESS WHEREOF, the parties have executed this FIRST AMENDMENT TO TRIPLE NET LEASE AGREEMENT on this 27th day of January, 2022.

OWNER:

Dan Surdam, Owner

X 

TETON LANE, LLC
PO Box 1142
Cheyenne, WY 82003
(307) 256-8556
dsurdam@yahoo.com

OPERATOR:

Eric Nelson, Manager

X 

WYOMING DOWNS OTB 14, LLC
2905 Lake East Dr., Suite 150
Las Vegas, NV 89117
(702) 682-8918
Eric@wydowns.com

TRIPLE NET LEASE AGREEMENT

1345 Dell Range Blvd, Cheyenne, Wyoming 82009

THIS LEASE is made as of August 15th, 2020, by and between Teton Lane, LLC ("Lessor"), whose address is PO Box 1142, Cheyenne, Wyoming 82003, and Wyoming Downs OTB #14, a Wyoming Corporation ("Lessee"), whose address is 3611 Lindell Road, Las Vegas, NV 89103, effective as of the last date executed by a party hereunder (the "Effective Date").

WITNESSETH, THAT FOR AND IN CONSIDERATION of the covenants and agreements herein contained to be observed, kept and performed by the aforementioned respective parties hereto, the Lessor does hereby lease, let and demise unto the Lessee and the Lessee does hereby lease and hire for the Lessor the premises located and situated at 1345 Dell Range Blvd, Cheyenne, Wyoming 82009 (the "Premises") in the County of Laramie County. The legal description of the Premises is as follows:

A portion of Lot 1, Block 2, Meadowbrooke Park, a subdivision situated in the North Half of Section 29, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, more particularly described as follows:

Beginning at a point on the north line of said Lot 1, from which the northwest corner of Lot 1, Block 3, Meadowbrooke Park has an azimuth of 90°17'22", a distance of 272.00 feet; thence 180°15'32", a distance of 140.65 feet to the south line of said Lot 1; thence 262°28'57", along said south line, a distance of 265.65 feet; thence 323°41'29", a distance of 118.99 feet; thence 05°

1. USE OF PREMISES

The Premises shall be used only as or for the purpose of: An entertainment venue, and all uses customarily associated with such purpose, including reasonable administrative space and storage.

2. LEASE TERM

A. The term of this Lease shall begin on October 1st, 2020 and will end on December 31st, 2025 at 11:59 PM (the "Initial Term"). This Lease may also be extended by the parties (an "Extension") and renewed (a "Renewal Term"), as described below. Collectively, the Initial Term, and any Extension and Renewal Term entered into, shall be described in this Lease as the "Term".

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Initials TLD Initials EN

B. In the event that the Lessee does not wish to renew the lease, the Lessee shall provide the Lessor with ninety (90) days advance written notice of intent to vacate, and Lessee may vacate at the end of the month in which the 90th day falls. Prior to vacating the Premises, the Lessee shall make sure that the Premises are clean and free and clear of any dirt, trash, waste and/or debris, with the exception of normal wear and tear. The Lessor shall have the right to perform a walk through prior to the Lessee vacating to ensure the Premises comply with the aforementioned requirements.

3. **RENT/LEASE PAYMENT**

A. The following base rate rents are established for the first base period of 63 months with 2 (two) five year extensions.

Year	Rent/Foot	Total Annual Rent Due	Monthly Rent Due
Oct 01-Dec 31, 2020	11.50	\$25,912	\$8,637.46
1	23.00	\$207,299	\$17,274.92
2	23.69	\$213,517	\$17,793.08
3	24.40	\$219,917	\$18,326.42
4	25.13	\$226,497	\$18,874.75
5	25.88	\$233,256	\$19,438.00

B. The Lessee agrees to and shall pay each monthly rental payment to the Lessor at PO Box 1142, Cheyenne, Wyoming 82003, or through ACH transfer or other third party rent collecting system by the tenth (10th) of each month.

C. Rent shall be payable in advance of the 1st calendar day of each month. Any payments received after the 10th day of each month shall be deemed late and delinquent. Should the Lessor not receive payment by the tenth day of the month in which the payment is due, the Lessee shall pay a late charge of \$100 per day, which shall be considered additional rent and due with the next rental payment. Notwithstanding anything to the contrary in this Lease, Lessee's failure to make rental payments shall only be deemed a "material default" of Lessee's obligations under this Lease after Lessee has failed to make rental payments, when due, for three (3) consecutive months.

D. In the event a check for rent or lease payment is returned for non-sufficient funds (NSF), the Lessee shall pay a return check fee in the amount of \$100.00, and the Lessor shall reserve the right to only accept further payments made in certified funds (e.g. certified check or money order).

4. **RENEWAL TERMS**

If the Lessee is not in default under the terms and conditions of this Agreement, the Lessee shall have the option to renew this Lease for two (2) Renewal Term of five (5) years. If the Lessee chooses to exercise this renewal option, the Lessee shall provide to the Lessor written notice of Lessee's intention to renew at least 90 days prior to the expiration of the initial Term. The

Renewal Term shall continue upon the same terms and conditions in this Agreement, with 3% annual increase in rent/sq foot.

5. HOLDING OVER

Failure of the Lessee to surrender the Premises at expiration of the Term constitutes a holding over which shall be construed as a "tenancy-at-will" or a month to month lease at the rate of \$22,000.00 per month, until such time as the Lessee and Lessor enter into a renewal or extension of the Lease, or Lessee provides notice of intent to vacate.

6. SECURITY and RENT DEPOSIT

A. Concurrently with the execution of this Lease, the Lessee shall deliver to the Lessor the amount of \$20,000.00 as security for the performance of the Lessee of every covenant and conditions of this Lease (the "Security Deposit"). Said Security Deposit may be co-mingled with other funds of the Lessor and shall bear no interest. In addition to the security deposit, the Lessee shall deliver first month (\$17,274.92) and last months rent (\$19,438) prior to October 1st, 2020. Tenant requires the approval of the Wyoming Parimutuel Commission no later than November 15, 2020. If the Commission does not approve the location, tenant to forfeit first and last month rent deposit and seller to return the security deposit to tenant.

B. In the event that the Lessee defaults with respect to any covenant or condition of this Lease, including, but not limited to the payment of rent, the Lessor reserves the option and right to apply some or all of the paid Security Deposit to the payment of any sum in default or any sum which the Lessor may be required to spend by reason of Lessee's damage or default. If any portion of the Security Deposit is so applied, the Lessee, upon demand by the Lessor, shall deposit cash with the Lessor in an amount sufficient to restore the Security Deposit to its original amount.

C. Lessor shall return the full amount of Lessee's Security Deposit, without interest, upon termination of the Lease so long as Lessee has complied with all the covenants and conditions of this Lease.

7. POSSESSION

A. The Lessee shall take possession of the Premises on October 1st, 2020, unless otherwise agreed by the parties. The Lessor shall use due diligence to ensure Lessee is provided possession of the Premises at the beginning of the Term of this Lease Agreement. The first month's rent shall be prorated for the period of any delay in providing or turning over possession of the Premises to the Lessee; however, the length of the Term shall not be extended as a result of any such delay. The Lessee shall bring no claim against the Lessor for any delay in obtaining possession.

B. In the event that the Lessee fails to take possession of the Premises within 30 days of October 1st, 2020, through no fault of Lessor, then the Lessor retains the right to terminate this Lease.

C. In the event Lessee is unable to take possession of the Premises within thirty (30) days of October 1st, 2020, as a result of Lessor's actions (or those of Lessor's owners, employees, contractors or agents) Lessee may terminate this Lease immediately, without penalty or further obligation to Lessor.

8. INSURANCE ON PREMISES

The Lessor shall obtain and pay for general property, fire and extended coverage casualty insurance for the building and other improvements on the Premises, and shall include Lessee as an additional insured on such policies to the extent of Lessee's leasehold interest.

9. LESSEE INDEMNITY & LIABILITY INSURANCE

The Lessee shall at all times indemnify, defend and hold the Lessor harmless from all loss, liability, costs, damage and expenses that may occur or be claimed with respect to any person or persons, property on or about the Premises or to the Premises resulting from any act done or omission by or through the Lessee, the Lessee's agents, employees, staff, invitees or any person on the Premises by reason of the Lessee's use or occupancy or resulting from the Lessee's non-use or possession of the Premises and any and all loss, cost, liability or expense resulting therefrom. Lessee shall maintain at all times during the Term comprehensive general liability insurance with an insurance company that is licensed to do business in the state in which the Premises are located and is satisfactory to Lessor, properly protecting and indemnifying Lessor with single limit coverage of not less than \$1,000,000.00 for injury or \$1,000,000.00 for death of persons and \$500,000.00 for property damage. Lessee shall carry automobile and liability insurance on its business and employees and in an amount of no less than \$2,000,000 for bodily injury, death, or property damage arising out of the ownership, maintenance, or use of motor vehicle for the purpose of Lessee's business and in a minimum amount of \$500,000 for each occurrence. All such policies shall be of primary coverage and non-contributory on the part of the Lessor. During the Term Lessee shall furnish the Lessor with a certificate or certificates of insurance, in a form acceptable to the Lessor, covering such insurance so maintained by the Lessee and naming the Lessor and Lessor's mortgagees, if any, as additional insureds.

10. TAXES

Lessee shall pay, during the Term of this Lease, the real estate taxes and special taxes and assessments (collectively, the "Taxes") attributable to the Premises and accruing during such term. Lessee shall pay to the Lessor said Taxes on annual basis within 60 (sixty) days of receiving an invoice from the Lessor. Taxes for any fractional calendar year during the Term hereof shall be prorated. In the event the Lessee does not make any Tax payment required hereunder, Lessee shall be in default of this Lease.

Lessee shall be responsible for and shall pay before delinquency all municipal, county, or state taxes assessed during the term of this Lease against any leasehold interest or personal property of any kind owned by or placed in, upon, or about the Premises by the Lessee.

11. OPERATING EXPENSES

A. It is the intention of the parties, and they hereby agree, that this shall be a triple net Lease, and the Lessor shall have no obligation to provide any services, perform any acts or pay any expenses, charges, obligations or costs of any kind whatsoever with respect to the Premises, and Lessee will be responsible for exterior building maintenance, fire suppression system maintenance, HVAC maintenance, roof repair and maintenance and exterior lighting. Lessee hereby agrees to pay one hundred percent (100%) of any and all Operating Expenses as hereafter defined for the entire Term of the Lease and any thereof in accordance with specific provisions hereinafter set forth. The term "Operating Expenses" shall include all costs to Lessee of operating and maintaining the Premises and related parking areas, and shall include, without limitation, real estate and personal property taxes and assessments, management fee, heating, electricity, water, waste disposal, sewage, operating materials and supplies, service agreements and charges, lawn care and landscaping, snow removal, repairs, cleaning and custodial, security, liability insurance, the cost of contesting the validity or applicability of any governmental acts which may affect operating expenses, and all other direct operating costs of operating and maintaining the Premises and related parking areas, including restriping and repaving if needed.

12. ASSIGNMENT AND SUBLETTING

A. The Lessee shall not assign, transfer or encumber this Lease and shall not sublease the Premises or any part thereof or allow any other person to be in possession thereof without prior written consent of the Lessor, in each and every instance. Said consent shall not be unreasonably withheld by the Lessor. For the purpose of this provision, any transfer of a majority or controlling interest in Lessee (whether in one or more related or unrelated transactions), whether by transfer of stock, consolidation, merger, transfer of a partnership interest or transfer of any or all of Lessee's assets or otherwise, or by operation of law, shall be deemed an assignment of this lease. Notwithstanding any permitted assignment or subletting, Lessee shall at all times remain directly, primarily and fully responsible and liable for the payment of the rent herein specified and for compliance with all of its other obligations under the terms and provisions of this Lease.

B. Lessor agrees that Lessee will have first right of refusal in the event Lessor decides to sell, transfer, assign or convey its interest in the Premises during the Term, excepting mortgages existing on the Premises as of the Effective Date. The first right of refusal offer and responses shall be conducted in writing allowing at least 30 (thirty) days for consideration.

C. Lessee has the option to purchase Property after three (3) years from date of occupancy for a price determined to be at the then fair market value supported by a State of Wyoming Licensed Appraiser and sale price agreed to by Lessee and Lessor.

13. CONDITION OF PREMISES

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Initials TLD Initials EN

Lessee acknowledges that it has had the opportunity to inspect the Premises and, with the exception of any notations or provisions herein provided otherwise in this Lease, the Lessee accepts the Premises in its present condition. At the end of the lease term, Lessee, at its expense shall (i) surrender the Premises in the same or similar condition as existed at the time the Premises were accepted and possession taken by the Lessee, subject to reasonable wear resulting from uses permitted hereunder, and further subject to Lessee's obligations; (ii) have removed all of the Lessee's property from the Premises; (iii) have repaired any damages to the Premises caused by the removal of the Lessee's Property, reasonable wear and tear excepted; and (iv) leave the Premises free of trash, waste, dirty and debris, reasonable wear and tear excepted, and the Premises in good and reasonable condition.

14. LESSOR'S RIGHT OF ENTRY

The Lessor or Lessor's agent shall have the right of entry at reasonable hours to inspect or show the Premises to prospective Lender or Lien Holders and purchasers, and to perform or provide anything that the Lessor may be required to perform or provide hereunder, or which the Lessor may deem necessary for the good or benefit of the Premises or any building of which they are a part. As of and during the last ninety (90) days of this Lease, the Lessor shall have the right to post and/or display a "For Rent" or "For Sale" sign on the Premises, unless Lessee has provided notice of Lessee's intent to enter into a Renewal Term of this Lease, as described above in "Renewal Terms."

15. EXCLUSION OF LESSEE

During the Term, Lessor may not intentionally prevent the Lessee from entering the Premises except by judicial process unless the exclusion results from: (i) bona fide repairs, construction, or an emergency, where such exclusion is necessary to Lessor's interest in the Premises; or (ii) removing the contents of Premises abandoned by Lessee, after Lessee has vacated the Premises. Lessor or Lessor's agent must then place a written notice on Lessee's front door stating the name and address or telephone number of company or the individual from whom the key may be obtained. The new key is required to be provided only during Lessee's regular business hours.

16. SIGNS AND ADVERTISEMENTS

The Lessee shall not place upon nor permit to be placed upon any part of the Premises, any signs, billboards or advertisements whatsoever, or paint the exterior walls of the building without the advance prior written consent of the Lessor. The Lessor shall have the right to remove any sign(s) which have not been approved in order to maintain the Premises or to make any repairs or alterations thereto. All permitted signage placement and/or removal shall be at the Lessee's sole cost and expense. The parties agree that Lessee may place reasonable signage on the Premises relevant to its intended use, and that such signage is deemed approved by Lessor.

17. FORCE MAJEURE

A. In the event that the Lessor or Lessee is unable to reasonably perform its obligations

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under this Agreement as a result of a natural disaster, war, terrorist activities, strike, lockout, labor issues, civil commotion, and act of God, or any other event beyond the control of the Lessor or Lessee, with the exception for non-availability of funds, the party shall not be in breach of this Agreement if the party diligently performs the obligations after the end of the force majeure event. The non-performing party shall give written notice to the other party as soon as reasonably practicable in the event of non-performance due to a force majeure event.

B. In the event, during the Term, the Premises shall be destroyed or so damaged by fire or other casualty as to become uninhabitable or unusable, then in such event, at the option of the Lessor, this Lease shall terminate from the date of such damage and/or destruction. The Lessor shall exercise this option to terminate this Lease by delivering written notice to the Lessee within 30 days after the occurrence of such damage and/or destruction. Upon such notice, the Lessee shall immediately surrender said Premises and all interest therein to the Lessor, and the Lessee shall pay rent only to such time that damages and/or destruction occurred. In the event that the Lessor does not elect to terminate this Lease, this Lease shall therefore continue in full force and effect, but Lessee's obligation to pay rent for that portion of the Premises rendered unusable by fire or other casualty shall be abated during such period, and the Lessor shall expeditiously make any and all necessary repairs to the Premises as needed, placing the same in as good condition as it was prior to the occurrence of damage or destruction. Lessee's obligation to make rent payments as to the unusable portion shall resume once such repairs are complete and the Premises may be reasonably used for Lessee's full intended purpose. If the unusable portion of the Premises is so great that the remainder of the Premises cannot reasonably be used for Lessee's full intended purpose for more than thirty (30) days, Lessee may, at its option, terminate this Lease upon ninety (90) days prior written notice, with no further penalty or obligation to Lessor.

18. PERSONAL PROPERTY

The Lessor shall not be liable for any loss or damage to any merchandise inventory, goods, fixtures, improvements or personal property of the Lessee in or about said Premises.

19. ALTERATIONS

Any and all alterations, additions and/or improvements, except trade fixtures, installed at the expense of the Lessee shall become the property of the Lessor and shall remain upon and shall be surrendered with the Premises as a part thereof on the termination of this Lease. Such alterations, additions, and improvements may only be made with the prior written consent and approval of the Lessor, which shall not be unreasonably withheld. If consent is granted by the Lessor for the making of improvements, alterations or additions to the Premises, such improvements, alterations or additions shall not commence until such time as the Lessee has furnished to the Lessor a copy of all plans and a certificate of insurance showing coverage in an amount satisfactory to the Lessor protecting the Lessor from liability for injury to any person and damage to any personal property, on or off the Premises, in connection with the making of such improvements, alterations or additions. No cooling tower, equipment, or structure of any kind shall be placed on the roof or elsewhere on the Premises by the Lessee without prior written permission of the Lessor. If such permission is granted, such work or installation shall

be done at the Lessee's expense and in such a manner that the roof shall not be damaged thereby. If it becomes necessary to remove such cooling tower, equipment or structure temporarily so that repairs to the roof can be made, Lessee shall promptly remove and reinstall the cooling tower, equipment or structure at the Lessee's expense and repair at the Lessee's expense any damage which may result from such removal or reinstallation. Upon termination of this lease, Lessee shall remove or cause to be removed from the roof any such cooling tower, equipment or structure if directed to do so by the Lessor. However, the Lessor shall retain the option to permit the Lessee to remove their alterations or improvements prior to the expiration of this Lease and return the Premises to its original condition. Lessee shall promptly repair, at its expense, any damages resulting from such removal. Any damage caused by the installation of trade fixtures shall be repaired at the Lessee's expense prior to the expiration of the lease term. All alterations, improvements, additions and repairs made by the Lessee shall be made in good and workmanlike manner.

20. UTILITIES & SERVICES

The Lessee shall furnish and pay for all of the following and any other utilities deemed necessary by the Lessee at the Premises: Gas, electricity, HVAC, water, internet, and telephone, and shall make all necessary arrangements for all such utilities to be separately metered and billed to Lessee.

21. INTERRUPTION OF UTILITIES

Lessor or Lessor's agent may not interrupt or cause the interruption of utility services paid directly to the utility company by the Lessee unless interruption results from bona fide repairs, construction, or an emergency. If any utility services furnished by the Lessor are interrupted and continue to be interrupted despite the good faith efforts of Lessor to remedy the same, Lessor shall not be liable in any respect for damages to the person or property of Lessee or Lessee's employees, agents, or guests and same shall not be construed as grounds for constructive eviction or abatement of rent. Lessor shall use reasonable diligence to repair and remedy such interruption promptly.

22. LEGAL REQUIREMENTS

The Lessee shall comply with all laws, orders, ordinances and other public requirements now and hereafter affecting the Premises or the use thereof, and the Lessee shall indemnify, defend and hold harmless the Lessor from any expense or damage resulting from Lessee's failure to do so.

23. REPAIRS AND MAINTENANCE

In the event that any repairs required to be made by the Lessee hereunder are not made within 90

days after written notice delivered to the Lessee by the Lessor, the Lessor shall reserve the right and option to make or have said repairs made without liability to the Lessor for any loss or damage which may result by reason of such repairs, and that Lessee shall pay to the Lessor, upon demand as additional rent hereunder, the reasonable cost of such repairs. At the termination of this Lease, Lessee shall deliver the Premises in good order and condition, normal wear and tear excepted. Normal wear and tear meaning the deterioration which results from normal use and not as an act of carelessness, neglect, accident or abuse.

24. EMINENT DOMAIN

In the event that the Premises are taken under the power of eminent domain or a conveyance in lieu thereof by any authority having the right of condemnation, or if a portion thereof is taken so that the Premises are unsuitable, in the Lessee's reasonable opinion, for Lessee's use, then the term of this lease shall terminate as of the date that title shall vest in the acquiring authority, and the rent and other charges shall be adjusted as of the date of such taking. In such case, the Lessor shall be entitled to the proceeds of the condemnation award made to the Lessor. Nothing herein shall be construed to prevent the Lessee from separately pursuing a claim against the condemning authority for its independent loss or damages to the extent available. The Lessee shall have no claim against the Lessor for the value of the unexpired term of this Lease, but may seek compensation from the condemning authority for such value. Should any part of the Premises be taken in the exercise of eminent domain or a conveyance in lieu thereof or in connection therewith, but not such as to render the Premises unsuitable for the operation of Lessee's business, this Lease shall continue on the same terms and conditions except that the description of the Premises or the real estate taken by right of eminent domain or conveyance in lieu thereof or in connection therewith shall be modified to reflect such taking. In the event this Lease does not terminate by reason of such taking, the condemnation proceeds from the Premises will first be used to restore the Premises to a position of occupancy by the Lessee. The balance of such condemnation proceeds from the Premises, if any, shall belong to the Lessor.

25. WAIVER OF SUBROGATION

As part of the consideration for this Lease, each of the parties hereby releases the other party from all liability for damage due to any act or neglect of the other party occasioned to the property owned by said parties which is or might be incident to or the result of fire or other casualty against loss for which either of the parties is now carrying or hereafter carry insurance; provided however, that the releases herein contained shall not apply to any loss or damage occasioned by intentional acts of either of the parties, and the parties further covenant that any insurance they obtain on their respective properties shall contain an appropriate provision whereby the insurance company, or companies, consent to the mutual release of liability contain in this paragraph.

26. DEFAULT & REMEDIES

A. **RE-ENTRY:** If Lessee commits a material default of this Lease, Lessor shall provide Lessee with written notice of the facts or condition alleged to constitute default, and

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Lessee shall have thirty (30) days (or such longer time as is agreed by the parties) to cure the default. If Lessee cures the material default to Lessor's reasonable satisfaction within such period, the notice shall be deemed withdrawn and the default cured. If the material default is not cured within such period, the Lessor shall re-enter the Premises without declaring the Term ended and relet the whole or any part therefor for the account of Lessee on such terms and conditions and at such rent as Lessor may reasonably deem proper, collecting such rent and applying it to the amount due from Lessee hereunder as mitigation to any damages suffered by Lessor as a result of such default. Lessor may recover from Lessee the expense of such reletting (including expense of alteration and special inducements to Lessee) and any other damage or expense so sustained by Lessor, or any such item or items, from the difference between the proceeds of such reletting and the amount of rental payments Lessee is obligated to pay hereunder. As soon as the difference between the rental rate on re-letting and the rental payments required by this Lease equals the amount of any due but unpaid rent by Lessee as of the date of re-letting, the Term shall be ended and this Lease terminated, and Lessee shall thereafter have no further obligation to Lessor hereunder.

B. LESSEE DEFAULT AND REMOVAL OF ABANDONED PROPERTY

In the event that the Lessee abandons the Premises or otherwise materially defaults in the performance of any obligations or covenants herein (except the failure to pay rental payments required when due), the Lessor may enforce the performance of the Lease in any manner provided by law. This Lease may be terminated at the Lessor's discretion if such abandonment or default continues for a period of sixty (60) days after the Lessor notifies the Lessee of such abandonment or default and of Lessor's intention to declare this Lease terminated. Such notice shall be sent by the Lessor to the Lessee at the Lessee's last known address by certified mail. If Lessee has not completely removed or cured the default within the 60 day period, this Lease shall terminate. Thereafter, Lessor or its agents shall have the right without further notice or demand to enter the Premises and remove all property without being deemed guilty of trespass and without waiving any other remedies for arrears of rent or breach of covenant. Upon abandonment or material default by the Lessee, the remaining unpaid portion of any rent shall become due and payable. For the sole purpose of this section, Lessee is presumed to have abandoned the Premises if goods, equipment, or other property, in an amount substantial enough to indicate a probable intent to abandon the Premises, is being or has been removed from the Premises and the removal is not within the normal course of Lessee's business. Lessor shall have the right to store any property of Lessee that remains on the abandoned Premises and, in addition to Lessor's other rights, may dispose of the stored property if the Lessee does not claim the property within fourteen (14) days after the date that the property is stored, provided Lessor delivers notice by certified mail to Lessee.

C. DAMAGES

Notwithstanding anything in this Lease to the contrary, Lessor shall make commercially reasonable efforts to mitigate any damages it may suffer as a result of any default by Lessee, including making reasonable efforts to re-let the Premises, and apply the proceeds of re-letting to such damages. Lessor shall only be entitled to recover damages from Lessee as a result of

Lessee’s default that Lessor has not been able to mitigate, despite Lessor’s commercially reasonable efforts to do so.

D. LESSOR’S DEFAULT

In addition to any other right or remedy Lessee may have herein or at law or equity, Lessee shall have the right, in the event of any material default of this Lease by Lessor, to terminate this Lease upon sixty (60) days written notice to Lessor. The notice shall state the events alleged to constitute material default, and Lessor may attempt to cure the alleged material default during the 60 day notice period (if capable of cure). If the material default is cured to Lessee’s reasonable satisfaction during such period, Lessee’s notice shall be deemed withdrawn. If the default is not cured within such period, this Lease shall be immediately terminated and Lessee shall have no further obligation to Lessor hereunder.

E. RIGHT TO CURE DEFAULT

Either party, at any time after the other party commits a default, can cure the default at the defaulting party’s cost. If the curing party at a time, by reason of the other party’s default, pays any sum or does any act that requires the payment of any sum, the sum paid by the curing party shall be due immediately from the defaulting party to the curing party at the time the sum is paid. If the defaulting party is the Lessee, such amounts shall be paid by Lessee to Lessor as additional rent.

27. WAIVER

Unless otherwise stated herein, the rights and remedies of the Lessor and Lessee under this Lease, as well as those provided by law, shall be cumulative, and none shall be exclusive of any other rights or remedies. A waiver by the Lessor or Lessee of any breach or default of the other party shall not be deemed or construed to be a continuing waiver of such breach or default nor as a waiver of or permission, expressed or implied, for any subsequent breach or default. It is agreed that the acceptance by the Lessor of any installment of rent subsequent to the date the same should have been paid shall not alter the covenant and obligation of Lessee to pay subsequent installments of rent promptly upon the due date. Receipt by Lessor of partial payment after Lessee's default shall not be construed to be or constitute a cure of any such default. No receipt of money by Lessor before or after the termination of this Lease shall, on its own, reinstate, continue or extend the Term.

28. TOXIC OR HAZARDOUS MATERIALS

Lessee shall not store, use or dispose of any toxic or hazardous materials in, on or about the Premises without the prior written consent of Lessor. Lessee, at its sole cost, shall comply with all laws relating to Tenant's storage, use and disposal of hazardous or toxic materials. Lessee shall be solely responsible for and shall defend, indemnify and hold Lessor, its agents and employees, harmless from and against all claims, costs and liabilities, including attorney's fees and costs, arising out of or in connection with the Lessee's storage, use or disposal of any toxic

or hazardous material in, on or about the Premises including, but not limited to, removal, clean-up and restoration work and materials necessary to return the Premises, and any other property of whatever nature located on the Premises, to their condition existing prior to the appearance of toxic or hazardous materials on the Premises. Lessee's obligations under this paragraph shall survive the termination of this Lease.

29. GOVERNING LAWS

This Agreement shall be construed under and in accordance with the laws of the State of Wyoming, without giving effect to its "conflict of laws" jurisprudence. Exclusive venue for any action at law or in equity brought by any party to enforce or construe this Lease shall be in the courts in and for Laramie County, Wyoming, and each party hereby irrevocably consents to such court(s) exercise of personal jurisdiction over it.

30. COMPLIANCE WITH LAWS AND REGULATIONS

Each party shall, at its own expense, comply with all laws, orders, codes and requirements of all government entities with reference to the use and occupancy of the Premises. Each party and its agents, employees, and invitees shall fully comply with any rules and regulations governing the use of the buildings or other improvements to the Premises as required by the Lessor and agreed to by Lessee.

31. NOTICES

Any notice hereunder shall be sufficient if sent by certified mail, addressed to the Lessee at the Premises, and to the Lessor where rent is payable.

32. SUBORDINATION OF LEASE TO MORTGAGES

This Lease shall be subject and subordinate at all times to the lien of mortgages existing on the Premises as of the Effective Date. With regard to any pledge or mortgage executed by the Lessor, Lessor shall use its best efforts to provide to the Lessee a non-disturbance agreement from any mortgagee or other lien holder of Lessor's interest in the Premises. Such non-disturbance agreement shall be in form and content reasonably acceptable to Lessee and Lessor's mortgagee or other lien holder, together with a representation that the Lessor is not in default of any of the terms of any such mortgage or security agreement as of the date thereof. The Lessee will execute and deliver such further reasonable instruments subordinating this Lease to the lien of any such existing mortgages as may be desired by the mortgagee. Lessor shall not default on any loan or other obligation secured by a mortgage on the Premises during the Term, and shall provide Lessee with at least ninety (90) days prior notice of any circumstances reasonably likely to lead to an event of default by Lessor on any such loan.

33. SUCCESSORS

The provisions, covenants and conditions of this Lease shall bind and inure to the benefit of the legal representatives, heirs, successors and assigns of each of the parties hereto, except that no

assignment or subletting by Lessee without the written consent of Lessor shall vest any rights in the assignee or subtenant of Lessee.

34. **QUIET POSSESSION**

Lessor agrees, so long as Lessee materially complies with all of the terms, covenants and conditions herein contained on the Lessee's part to be kept and performed, Lessee shall and may peaceably and quietly have, hold and enjoy the Premises for the Term and any extension or Renewal Term, it being expressly understood and agreed that the aforementioned covenant of quiet enjoyment shall binding upon the Lessor, its heirs, successors or assigns, but only during such party's ownership of the Premises. Lessor and Lessee further covenant and represent that each has full right, title, power and authority to make, execute and deliver this Lease.

35. **BANKRUPTCY**

Neither this Lease nor any interest therein nor any estate hereby created shall pass to any trustee or receiver in bankruptcy or to any other receiver or assignee for the benefit of creditors by operation of law or otherwise during the Term or any renewal thereof.

36. **PRIOR AGREEMENTS SUPERSEDED**

This agreement constitutes the sole and only agreement of the parties to this lease and supersedes any prior understandings, whether written or oral agreement, between the parties respecting the subject matter of this lease.

37. **AMENDMENT**

No amendment, modification, or alteration of the terms hereof shall be binding unless it is in writing, dated subsequent to the date hereof and duly executed by all parties to this agreement.

38. **ADDITONAL INSTRUMENTS**

The parties hereto will execute any and all additional document or instruments that may be necessary or convenient to carry out the intent and purposes of the parties to this agreement.

39. **ENTIRE AGREEMENT**

This Lease contains the entire agreement between the parties and no modification of this Lease shall be binding upon the parties unless evidenced by an agreement in writing and signed by the Lessor and Lessee after the date hereof. If there be more than one Lessee name herein, the provisions of this Lease shall be applicable to and binding upon such Lessees, jointly and severally.

40. **SHORT FORM MEMORANDUM OF LEASE**

The parties hereby agree that, at Lessee's request, each of them shall execute a short-form memorandum of lease, evidencing Lessee's leasehold interest in the Premises, and option to

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renew this Lease, which may be recorded in the official records of Laramie County, Wyoming.

IN WITNESS WHEREOF, said parties hereunto subscribe their names.

LESSOR

By:

Authentisign
TetonLane LLC DSurdam
9/30/2020 11:33:36 PM EDT

09/30/2020

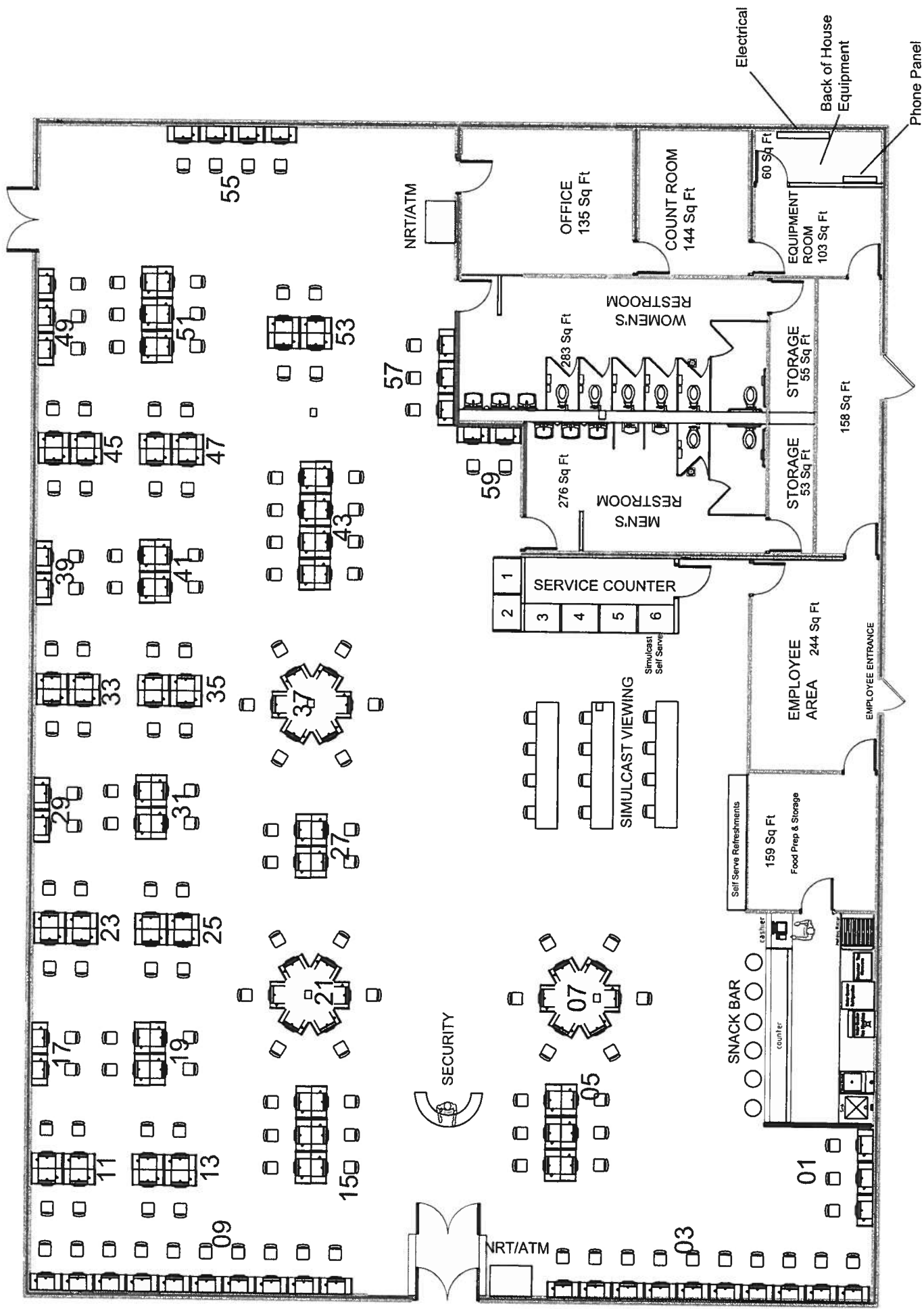
(Lessor Signature)
Teton Lane, LLC
Lessor Telephone: 307-256-8556
Lessor Email: dsurdam@yahoo.com

LESSEE

By:

Eric Nelson
9/30/2020 12:10 PM PDT

(Lessee Signature)
Wyoming Downs OTB #14, a Wyoming Corporation
Lessee Telephone: 702-682-8918
Lessee Email: ericnelson59@gmail.com



STATE OF WYOMING
Office of the Secretary of State

I, EDWARD A. BUCHANAN, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that according to the records of this office,

Wyoming Downs OTB14 LLC

is a

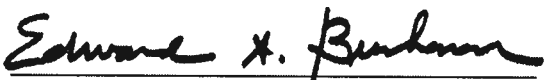
Limited Liability Company

formed or qualified under the laws of Wyoming did on **December 17, 2014**, comply with all applicable requirements of this office. Its period of duration is Perpetual. This entity has been assigned entity identification number **2014-000677670**.

This entity is in existence and in good standing in this office and has filed all annual reports and paid all annual license taxes to date, or is not yet required to file such annual reports; and has not filed Articles of Dissolution.

I have affixed hereto the Great Seal of the State of Wyoming and duly generated, executed, authenticated, issued, delivered and communicated this official certificate at Cheyenne, Wyoming on this 26th day of January, 2022 at 7:21 PM. This certificate is assigned ID Number 049495540.




Secretary of State

Notice: A certificate issued electronically from the Wyoming Secretary of State's web site is immediately valid and effective. The validity of a certificate may be established by viewing the Certificate Confirmation screen of the Secretary of State's website <https://wyobiz.wyo.gov> and following the instructions displayed under Validate Certificate.

Wyoming Downs



City Clerk Department
Division of City Clerk
2101 O'Neil Ave., Room 101
Cheyenne, WY 82001

January 27, 2022

RE: Letter of Introduction

Dear Mayor Collins and esteemed City Council Members of Cheyenne,

Wyoming Downs is a privately held LLC offering Historic Pari-Mutuel wagering and live Simulcast Pari-Mutuel wagering at 17 locations (OTBs) across Wyoming. We currently have locations in Evanston, Green River, Rock Springs, Laramie, Cheyenne, Casper, Gillette, and Sheridan. Employing more than 100 Wyoming residents we are licensed by and in good standing with the seven cities and counties in which we operate plus the Wyoming Pari-Mutuel Commission and Wyoming Liquor Division, Dept. of Revenue. On an annual basis we contribute over four million dollars to state, city and county taxes and over a million dollars to the state's Breeders Award Fund. We also own and operate Wyoming's largest and only privately owned live horse racing facility located in Evanston, Wyoming. We are a member in good standing with Cheyenne's Chamber of Commerce.

All of our employees are required to pass background checks and drug tests prior to employment, complete TIPS (alcohol seller and server training), as well as successfully obtaining licensure from the Wyoming Gaming Commission.

Eric Nelson
Managing Partner
Wyoming Downs

Rick Cook
Chief Operating Officer
Wyoming Downs



CITY OF CHEYENNE

Who We Are

- We are Wyoming Downs, LLC.
- Wyoming Downs operates the only privately owned racetrack in Wyoming.
- In 2021 we were approved and conducted 18 days of live racing in Evanston; we have been approved for 20 race days in 2022.
- Wyoming Downs is the largest contributor to the Wyoming Breeder Award Fund.
- We currently operate 17 off-track betting (OTB) locations statewide.
- Wyoming Downs is authorized by the State of Wyoming to conduct horse racing events to include racing, simulcasting, historic racing, roping and a variety of equestrian events.
- WPC is funded by the sole efforts and fees of the live track operators.
- In 2021 Wyoming Downs funded approximately \$2,985,000.00 and any excess funding goes into the state general funds positively impacting both the city and county of Cheyenne.
- We have maintained licensing from the Wyoming Pari-Mutuel Commission and have a long history of conducting pari-mutuel business in Wyoming.
- Wyoming Downs has always conducted business in accordance with the rules and regulations of the Wyoming Pari-Mutuel Commission.

Business Plan

- Our existing location is 1345 Dell Range Blvd., Cheyenne, WY 82009.
- Wyoming Downs' leased space currently hosts off-track wagering, pari-mutuel simulcasting and approximately 134 historic horse racing terminals.
- We are looking to apply and obtain a liquor license in order to serve liquor and malt beverages to our patrons.
- Liquor sales would allow Wyoming Downs to be competitive.

Benefits to Cheyenne

- A big part of the success that Wyoming Downs, LLC has achieved is due to the partnership(s) we have and are developing with Cheyenne and like cities and counties throughout the state of Wyoming.



- It is projected that adding a liquor license will increase tax revenue to the City of Cheyenne and County of Laramie by an estimated 25% and provide additional jobs to the City of Cheyenne.
- In 2022 we estimate an additional \$65,000 in taxes will be paid to the City of Cheyenne bringing the estimated total taxes to the city up to \$282,000.
- Tax Recap:
 - State of Wyoming/Commission: \$2,950,000
 - Wyoming Breeder Award Fund: \$2,388,000
 - Counties/Cities: \$5,970,000
 - Track Purses: \$1,790,000
 - Total: \$13,098,000

Thank you for your consideration from all of us at Wyoming Downs, LLC.